Harris County District Court

Cause No. 2024-CV-0008

Samuel Nelson, Plaintiff, v. Harbor Point Mutual Auto Insurance, Defendant

Defendant's Original Answer

Date:	11-22-24
Counsel for defendant:	Richard Marshall, Ashford & Lyle LLP

Defendant denies each and every allegation contained in Plaintiff's Original Petition, and demands strict proof thereof as required by the Texas Rules of Civil Procedure. Pursuant to Rule 92, Defendant generally denies each allegation and asserts the right to require Plaintiff to prove every element of her claims by a preponderance of the evidence.

For further answer, and without assuming any burden of proof that the law places on Plaintiff, Defendant asserts the following affirmative defenses. First, Plaintiff failed to mitigate her damages by not following reasonable medical advice and by delaying treatment after the collision. Second, the collision was of low speed and minimal impact, and any injuries claimed were not caused by the collision but by preexisting conditions or subsequent unrelated events. Third, Plaintiff's recovery, if any, must be reduced by her own proportionate responsibility under Chapter 33 of the Texas Civil Practice and Remedies Code, to the extent her negligence contributed to the occurrence.

Defendant reserves the right to amend this answer as discovery proceeds.